RIVERSIDE COUNTY
PLANNING DEPARTMENT

John Hildebrand
Planning Director

April 18, 2024

Travis McGill
ELMT Consulting
2201 N. Grand Ave, #10098
Santa Ana, CA 92711

Dear Travis McGill:

RE: MSHCP Consistency Analysis and 2023 Dry Season Survey Report for CUP230002
Assessor's Parcel Number(s): 349-170-005, 006, 007, 008, 009, 010, 011, 012, 013 and 349-180-002, 004, 005, 006, 007, 008, 016, 017, 020, 035
EPD Case Number(s): PDB240013, PDB240012

EPD has reviewed the Biological Resources Assessment and WRCMSHCP Consistency Analysis and Dry Season Fairy Shrimp Survey submitted for CUP230002 and requests that the following comments be addressed before the reports can be approved and the project deemed to be in compliance with the Western Riverside County Multiple Species Habitat Conservation Plan (MSHCP).

MSHCP Consistency Analysis
Special-Status Wildlife

- Section 4.7.2 states that there is "a low potential to support" various special-status species including the CDFW candidate endangered species Crotch's bumblebee. If there is potential for this species to occur within the project area, then focused surveys for the species must be conducted. Focused surveys must be conducted according to accepted current protocols.

Riparian/Riverine Areas

- Section 5.1.1 of the report identifies an unnamed drainage (Drainage 1) that will be impacted by the proposed project. The report does not identify whether Drainage 1 is strictly Riverine or contains Riparian habitat. Please classify the drainage as Riparian/Riverine and describe vegetation within the drainage. Should the drainage include Riparian habitat the site must be analyzed for the potential to support Riparian bird species as described in section 6.1.2 of the MSHCP.
- Table in Appendix C states that least Bell's vireo is presumed absent because "there is no suitable habitat present within or adjacent to the project site." As requested in previous comment describe riparian habitat present if any occurs on site to justify assertion made in table.
- The project is proposing impacts to Drainage 1 that has been identified as Riparian/Riverine habitat according to Section 6.1.2 of the MSHCP. Mitigation for impacts to Riparian/Riverine habitat must proposed in a Determination of Biologically Equivalent or Superior Preservation (DBESP).
- A jurisdictional delineation for the project site will be required prior to project approval.

Additional MSHCP Considerations

- As stated in Section 5.4 of the report suitable habitat for burrowing owls does exist on the project site and a focused burrowing owl survey will be required to prove consistency with section 6.3.2 of the MSHCP.

2023 Dry Season (Fairy Shrimp) Survey Report

- Both the MSHCP Consistency Analysis and the Dry Season report acknowledge the identification of Branchinecta sp. eggs within the project site. As reported additional surveys are required to positively

identify the fairy shrimp that are present on the site. Fairy shrimp present on the site must be positively identified to prove compliance with the MSHCP.

Once all comments have been addressed, please resubmit updated documents through the PLUS system using only the PDB numbers listed on the first page of this letter.

If you have any questions or concerns, please contact Harry Sandoval with the Environmental Programs Division of the Planning Department at (951) 955-2706 or via email at hsandoval@rivco.org.

Sincerely,

PLANNING DEPARTMENT

Harry Sandoval

Harry Sandoval
Environmental Project Manager